

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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MUHAMMAD SALEEM,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER SHANE
WORRELL-LOUIS - Shield No. 9003, and
JOHN DOES - Police Officers as yet
unidentified,

Defendants.
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SUMMONS

Index No.:
Date Filed:

Plaintiff designates
New York County as the
Place of Trial

Basis of Venue is
Situs of Occurrence
On Broadway between
W. 51st St. & W. 50th St.
New York, New York

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service, where service is made by you personally within the State, or within thirty (30) days after completion of service where service is made in any other manner, and in case of your failure to answer, judgment shall be taken against you by default for the relief stated in the complaint.

Defendants' Addresses:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10038

POLICE OFFICER SHANE WORRELL-LOUIS
Shield Number 9003
Midtown North Police Precinct
306 W. 54th Street
New York, New York 10019

Plaintiff's Attorney:

LAW OFFICES OF FARRIS M. FAYYAZ, P.C.
192-08 Jamaica Avenue
Queens, NY 11423
Tel: (917) 335-3400

Dated: Queens, New York
October 15, 2019

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
MUHAMMAD SALEEM,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER SHANE
WORRELL-LOUIS - Shield No. 9003, and
JOHN DOES - Police Officers as yet
unidentified,

Index No.:

Defendants.

-----X
Plaintiff, MUHAMMAD SALEEM, by and through his attorneys, LAW
OFFICES OF FARRIS M. FAYYAZ, P.C., complaining of the defendants
herein, upon information and belief, respectfully shows to this Court
and alleges as follows:

1. That at all times hereinafter mentioned, Plaintiff was and still is a resident of the County of Nassau, State of New York.
2. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on May 22, 2019, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment or payment thereof were served upon THE CITY OF NEW YORK and NEW YORK CITY

POLICE DEPARTMENT, and that thereafter, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, refused or neglected for more than thirty (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. That on August 12, 2019, pursuant to the General Municipal Law, a Statutory 50-H hearing was held.

**AS AND FOR A FIRST CAUSE OF ACTION FOR
FALSE ARREST ON BEHALF OF MUHAMMAD SALEEM**

6. Plaintiff repeats and reiterates each and every allegation set forth above numbered "1" through "5" inclusive with the same force and effect as if more fully set forth at length herein.
7. That on April 10, 2019, and at all times hereinafter mentioned and upon information and belief, defendant, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, employed POLICE OFFICER SHANE WORRELL-LOUIS - Shield No. 9003 and JOHN DOES-Police Officers as yet unidentified, as agents, servants and/or employees.
8. That on April 10, 2019, and at all times hereinafter mentioned and upon information and belief, Plaintiff, MUHAMMAD SALEEM, was lawfully present on Broadway between W. 51st Street and W. 50th Street in the County, City, and State of New York.
9. That on April 10, 2019, and at all times hereinafter mentioned and upon information and belief, Plaintiff, MUHAMMAD SALEEM, was falsely arrested and confined by POLICE OFFICER SHANE WORRELL-

LOUIS - Shield No. 9003 and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT.

10. That on April 10, 2019, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause and was not based on reasonable grounds and not founded upon an arrest warrant.

11. That as a result of the aforesaid false arrest and confinement, Plaintiff, MUHAMMAD SALEEM, sustained serious permanent personal injuries along with mental anguish, fear, anxiety, shame, humiliation, indignity, damage to personal property, damage to reputation and credit, loss of earnings, loss of earnings capacity and capability, and suffered emotional and physical distress and injuries.

12. By reason of the foregoing, Plaintiff, MUHAMMAD SALEEM, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
FALSE IMPRISONMENT ON BEHALF OF MUHAMMAD SALEEM**

13. Plaintiff repeats and reiterates each and every allegation set forth above numbered "1" through "12" inclusive with the same force and effect as if more fully set forth at length herein.

14. That on April 10, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE

OFFICER SHANE WORRELL-LOUIS - Shield No. 9003 and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, when they, without justification and without probable cause, imprisoned the plaintiff.

15. The defendants, POLICE OFFICER SHANE WORRELL-LOUIS - Shield No. 9003 and JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, intentionally confined the plaintiff against his will and said confinement was not privileged.

16. The defendants POLICE OFFICER SHANE WORRELL-LOUIS - Shield No. 9003 and JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, intentionally confined the plaintiff against his will and without probable cause for more than one (1) day.

17. By reason of the foregoing, Plaintiff, MUHAMMAD SALEEM, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
NEGLIGENT HIRING AND RETENTION ON BEHALF OF MUHAMMAD SALEEM**

18. Plaintiff repeats and reiterates each and every allegation set forth above numbered "1" through "17" inclusive with the same force and effect as if more fully set forth at length herein.

19. Defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, did not exercise reasonable care and diligence in the selection, engagement, employment, and training of their agents, servants, and employees and were negligent in hiring, training, and retaining of the defendants, POLICE OFFICER SHANE WORRELL-LOUIS - Shield No. 9003 and JOHN DOES-Police Officers as yet unidentified, who falsely arrested, falsely imprisoned, and violated the civil rights of the plaintiff, MUHAMMAD SALEEM.
20. Defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, failed to exercise reasonable precautions in employing the defendants, POLICE OFFICER SHANE WORRELL-LOUIS - Shield No. 9003 and JOHN DOES-Police Officers as yet unidentified, by failing to properly investigate their background.
21. Defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER SHANE WORRELL-LOUIS - Shield No. 9003 and JOHN DOES-Police Officers as yet unidentified, and continued to employ persons who were unfit to serve as police officers and allowed them to be in contact with the public at large.
22. By reason of the foregoing, Plaintiff, MUHAMMAD SALEEM, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
NEGLIGENT TRAINING AND SUPERVISION ON BEHALF OF MUHAMMAD SALEEM**

23. Plaintiff repeats and reiterates each and every allegation set forth above numbered "1" through "22" inclusive with the same force and effect as if more fully set forth at length herein.
24. Defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, did not exercise reasonable care and diligence in the training and supervision of the defendants, POLICE OFFICER SHANE WORRELL-LOUIS - Shield No. 9003 and JOHN DOES-Police Officers as yet unidentified, who falsely arrested, falsely imprisoned, and violated the civil rights of the plaintiff, MUHAMMAD SALEEM.
25. Defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, had prior knowledge of the lack of training and supervision and the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER SHANE WORRELL-LOUIS - Shield No. 9003 and JOHN DOES-Police Officers as yet unidentified, and continued to inadequately train and supervise them while allowing them to be in contact with the public at large.
26. Defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, were negligent in the training and instruction of the defendants, POLICE OFFICER SHANE WORRELL-LOUIS - Shield No. 9003 and JOHN DOES-Police Officers as yet unidentified, by not exercising reasonable care in instructing them as to their deportment, behavior and conduct as police officers, especially regarding the abuse of power while in the field.

27. Defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, were negligent in the training and instruction of the defendants, POLICE OFFICER SHANE WORRELL-LOUIS - Shield No. 9003 and JOHN DOES-Police Officers as yet unidentified, by not exercising reasonable care in instructing them as to probable cause for arrests and subsequent investigation.
28. By reason of the foregoing, Plaintiff, MUHAMMAD SALEEM, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION FOR
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS ON BEHALF OF
MUHAMMAD SALEEM

29. Plaintiff repeats and reiterates each and every allegation set forth above numbered "1" through "28" inclusive with the same force and effect as if more fully set forth at length herein.
30. Defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER SHANE WORRELL-LOUIS - Shield No. 9003 and JOHN DOES-Police Officers as yet unidentified, acted intentionally and with utter disregard to the consequences of their actions and caused severe emotional distress to the Plaintiff MUHAMMAD SALEEM through their actions.
31. Said actions exceeded all bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the Plaintiff MUHAMMAD SALEEM.
32. That as a result of the intentional acts, Plaintiff, MUHAMMAD SALEEM, sustained serious permanent personal injuries

along with mental anguish, fear, anxiety, shame, humiliation, indignity, damage to personal property, damage to reputation and credit, loss of earnings, loss of earnings capacity and capability, and suffered emotional and physical distress and injuries.

33. By reason of the foregoing, Plaintiff, MUHAMMAD SALEEM, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
NEGLIGENT INFLECTION OF EMOTIONAL DISTRESS ON BEHALF OF MUHAMMAD
SALEEM**

34. Plaintiff repeats and reiterates each and every allegation set forth above numbered "1" through "33" inclusive with the same force and effect as if more fully set forth at length herein.
35. Defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER SHANE WORRELL-LOUIS - Shield No. 9003 and JOHN DOES-Police Officers as yet unidentified, acted recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the Plaintiff MUHAMMAD SALEEM through their actions.
36. Said actions exceeded all bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the Plaintiff MUHAMMAD SALEEM.
37. That as a result of the negligent acts, Plaintiff, MUHAMMAD SALEEM, sustained serious permanent personal injuries along with mental anguish, fear, anxiety, shame, humiliation, indignity,

damage to personal property, damage to reputation and credit, loss of earnings, loss of earnings capacity and capability, and suffered emotional and physical distress and injuries.

38. By reason of the foregoing, Plaintiff, MUHAMMAD SALEEM, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR
CIVIL RIGHTS VIOLATIONS ON BEHALF OF MUHAMMAD SALEEM**

39. Plaintiff repeats and reiterates each and every allegation set forth above numbered "1" through "38" inclusive with the same force and effect as if more fully set forth at length herein.
40. Defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER SHANE WORRELL-LOUIS - Shield No. 9003 and JOHN DOES-Police Officers as yet unidentified, acting under the color of law and within the scope of their authority, falsely arrested and falsely imprisoned the Plaintiff MUHAMMAD SALEEM in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.
41. Defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER SHANE WORRELL-LOUIS - Shield No. 9003 and JOHN DOES-Police Officers as yet unidentified, acting under the color of law and within the scope of their authority, deprived the Plaintiff MUHAMMAD SALEEM of liberty without due process and without reasonable cause in

violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

42. Defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER SHANE WORRELL-LOUIS - Shield No. 9003 and JOHN DOES-Police Officers as yet unidentified, acting under the color of law and within the scope of their authority, deprived the Plaintiff MUHAMMAD SALEEM of his right to counsel in direct violation of Fifth and Sixth Amendment of the Constitution of the United States of America, 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

43. Defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER SHANE WORRELL-LOUIS - Shield No. 9003 and JOHN DOES-Police Officers as yet unidentified, acting under the color of law and within the scope of their authority, deprived the Plaintiff MUHAMMAD SALEEM of his right to counsel in direct violation of Fifth and Sixth Amendment of the Constitution of the United States of America; to wit, despite having his attorney present at the precinct, the defendants, POLICE OFFICER SHANE WORRELL-LOUIS - Shield No. 9003 and JOHN DOES-Police Officers as yet unidentified, illegally obtained statements from the Plaintiff MUHAMMAD SALEEM outside of his counsel's presence while Plaintiff was imprisoned at the Midtown North Police Precinct.

44. The defendants deprived the Plaintiff MUHAMMAD SALEEM by their actions of his civil rights as guaranteed by statute and the Constitution of the United States of America.
45. That the deprivation by the defendants of Plaintiff MUHAMMAD SALEEM's civil rights was a result of said defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER SHANE WORRELL-LOUIS - Shield No. 9003 and JOHN DOES-Police Officers as yet unidentified, acting under the color of law and within their authority as law enforcement officers within the employ of defendants, THE CITY OF NEW YORK.
46. That the defendants' actions were not privileged or immune.
47. That the defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER SHANE WORRELL-LOUIS - Shield No. 9003 and JOHN DOES-Police Officers as yet unidentified, were not acting with immunity when they deprived plaintiff of his civil rights.
48. By reason of the foregoing, Plaintiff, MUHAMMAD SALEEM, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF MUHAMMAD SALEEM**

49. Plaintiff repeats and reiterates each and every allegation set forth above numbered "1" through "48" inclusive with the same force and effect as if more fully set forth at length herein.

50. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

51. The defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to the defendants, POLICE OFFICER SHANE WORRELL-LOUIS - Shield No. 9003 and JOHN DOES- Police Officers as yet unidentified, herein-above alleged.

52. By reason of the foregoing, Plaintiff, MUHAMMAD SALEEM, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff MUHAMMAD SALEEM demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; Plaintiff MUHAMMAD SALEEM demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; Plaintiff MUHAMMAD SALEEM demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; Plaintiff MUHAMMAD SALEEM demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; Plaintiff MUHAMMAD SALEEM demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; Plaintiff

MUHAMMAD SALEEM demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; Plaintiff MUHAMMAD SALEEM demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; Plaintiff MUHAMMAD SALEEM demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighth** Cause of Action; together with attorneys' fees, and costs and disbursements of this action and such other and further relief as this Court deems just and proper.

Dated: Queens, New York
October 15, 2019



Farris M. Fayyaz, Esq.
Attorneys for Plaintiff
192-08 Jamaica Avenue
Queens, New York 11423
(917) 335-3400

ATTORNEY VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF QUEENS)

FARRIS M. FAYYAZ, ESQ. an attorney duly admitted to practice in the Courts of the State of New York, respectfully affirms the truth of the following under penalty of perjury and pursuant to Rule 2106 of the Civil Practice Law and Rules of the State of New York:

The affirmant is the attorney of record for the Plaintiff. The affirmant has read the foregoing Summons & Verified Complaint and knows the contents thereof to be true to the affirmant's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, affirmant believes it to be true.

The reason this verification is being made by the affirmant and not by Plaintiff is that Plaintiff is not located within the County in which the affirmant maintains his office.

Dated: Queens, New York
October 15, 2019



FARRIS M. FAYYAZ, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X

MUHAMMAD SALEEM,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER SHANE
WORRELL-LOUIS - Shield No. 9003, and
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Index No.:

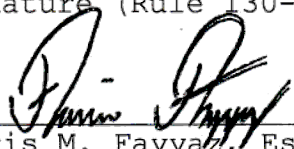
Defendants.

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SUMMONS & VERIFIED COMPLAINT

LAW OFFICES OF
FARRIS M. FAYYAZ, P.C.
Attorneys for Plaintiff
192-08 JAMAICA AVENUE
QUEENS, NEW YORK 11423

Signature (Rule 130-1.1a)



Farris M. Fayyaz, Esq.